

2014 WL 4435478 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Troy KELLY, Plaintiff,

v.

THE CITY OF NEW YORK, P.O. **Randy Kyrk** of the 47th Pct., Shield #25350, PO Joseph Timarchi of the 47th Pct., Shield #27993, PO Charles Gove of the 47th Pct., Shield #14285 and Other Nypd Officers s/h/a John/Jane Doe I-V, Defendants.

No. 0304574-2014.
August 22, 2014.

Purchased ____

Summons

Papa, Depaola and Brounstein, 42-40 Bell Boulevard Suite 500, Bayside, New York 11361, (718) 281-4000, for plaintiffs.

TO THE ABOVE NAMED DEFENDANT:

You ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete is this summons is not personally delivered to you within the State of New York); and in case of your failure to appear answer, judgment will be taken against you by default for the relief

Dated: Bayside, New York August 19, 2014

VERIFIED COMPLAINT

TROY KELLY, by his attorneys, PAPA, DEPAOLA AND BROUNSTEIN, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff **TROY KELLY** was a resident of Westchester County, State of New York.
2. At all times mentioned, Defendant **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 28th day of February, 2014 and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.

5. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to [Section 50-H of the General Municipal Law](#) and/or the Public Authorities Law and/or no such request was made within the applicable period.

6. Upon information and belief, at all times mentioned, Defendants **P.O. RANDY KYRK OF THE 47th PCT., SHIELD #25350, PO JOSEPH TIMARCHI OF THE 47th PCT., SHIELD #27993, PO CHARLES GOVE OF THE 47th PCT., SHIELD #14285 AND OTHER NYPD OFFICERS S/H/A JOHN/JANE DOE I-V**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

7. On or about August 21, 2013, at approximately 6:00 P.M. in the vicinity of the inside of 731 East 215th Street, Apartment #2, County of Bronx, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **TROY KELLY**, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.

9. On or about August 21, 2013, at approximately 6:00 P.M. in the vicinity of the inside of 731 East 215th Street, Apartment #2, County of Bronx, State of New York the Defendants, jointly and severally did place Plaintiff **TROY KELLY** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.

11. On or about August 21, 2013, at approximately 6:00 P.M. in the vicinity of the inside of 731 East 215th Street, Apartment #2, County of Bronx, State of New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of Bronx and there charged him with the crimes on Docket No. 2013BX048927. The Plaintiff was thereafter held in custody over the course of approximately two (2) days or approximately twenty-four (24) hours until he was released on his own recognizance. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.

13. On or about August 21, 2013, at approximately 6:00 P.M. in the vicinity of the inside of 731 East 215th Street, Apartment #2, County of Bronx, State of New York the Defendants, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in the City of New York's Correctional Facility. The Plaintiff was thereafter held in custody over the course of approximately two (2) days or approximately twenty-four (24) hours before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FIFTH CAUSE OF ACTION

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.

15. Upon information and belief, on or about August 21, 2013 and from that time until the dismissal of charges on or about December 3, 2013 which was a favorable termination for the accused by the Honorable Judge presiding at, Bronx County Criminal Court, Defendants **CITY OF NEW YORK, P.O. RANDY KYRK OF THE 47th PCT., SHIELD #25350, PO JOSEPH TIMARCHI OF THE 47th PCT., SHIELD #27993, PO CHARLES GOVE OF THE 47th PCT., SHIELD #14285 AND OTHER NYPD OFFICERS S/H/A JOHN/JANE DOE I-V** deliberately and maliciously prosecuted Plaintiff **TROY KELLY**, an innocent man without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

16. The Defendants, jointly and severally, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/ or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff and due to the absence of probable cause malice can be inferred.

17. The commencement of these criminal proceedings under Docket No. 2013BX048927 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

18. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty against these unjust charges.

AS AND FOR A SIXTH CAUSE OF ACTION

19. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "18" with full force and effect as though set forth at length herein.

20. Defendants **P.O. RANDY KYRK OF THE 47th PCT., SHIELD #25350, PO JOSEPH TIMARCHI OF THE 47th PCT., SHIELD #27993, PO CHARLES GOVE OF THE 47th PCT., SHIELD #14285 AND OTHER NYPD OFFICERS S/H/A JOHN/JANE DOE I-V** were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

21. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

22. Plaintiff **TROY KELLY** is and at all times relevant herein, a citizen of the United States and a resident of Westchester County in the State of New York and brings this cause of action pursuant to [42 United States Code, Section 1983](#) and [42 United States Code, Section 1988](#).

23. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.

24. On or about August 21, 2013, the Defendants, armed police, while effectuating the seizure of the Plaintiff **TROY KELLY**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned and maliciously prosecuted without the Defendants possessing probable cause to do so.

25. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;
- f. Freedom from the use of excessive force during the arrest process;
- g. Freedom from unlawful imprisonment;
- h. Freedom from loss of his liberty.

26. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.

27. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SEVENTH CAUSE OF ACTION

28. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "27" with full force and effect as though set forth at length herein.

29. Defendant **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

30. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

31. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:

1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
2. Excessive force cannot be used against an individual who does not physically resist arrest.
3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

31. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to his person and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN EIGHTH CAUSE OF ACTION

32. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs “1” through “31” as it set forth at length herein.

33. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the **CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York August 19, 2014

Yours, etc.

PAPA, DEPAOLA AND BROUNSTEIN

BY: JOHN R. DEPAOLA

Attorneys for Plaintiff

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-4000

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